

FHS Theory of Politics: Equality

Reading List:

Reading:

Debra Satz and Stuart White, 'What Is Wrong with Inequality?', 2021, Institute for Fiscal Studies, available at: [What is wrong with inequality? \(ifs.org.uk\)](https://www.ifs.org.uk)

Elizabeth Anderson, 'What is the Point of Equality?', *Ethics* 109, January 1999, pp.287-337.

G. A. Cohen, 'On the currency of egalitarian justice', *Ethics* 1989.

Further reading:

Jonathan Wolff, 'Fairness, Respect, and the Egalitarian Ethos', *Philosophy and Public Affairs*, 1998.

Nancy Fraser, 'From Redistribution to Recognition?', in Nancy Fraser, *Justice Interruptus*.

Kimberle Crenshaw, 'Mapping the Margins: Intersectionality, Identity Politics, and Violence Against Women of Color', *Stanford Law Review*, 1990.

Amartya Sen, *Inequality Reexamined*, especially chapters 1-5.

Ronald Dworkin, 'What is Equality? Part 2: Equality of Resources', *Philosophy and Public Affairs*, 1981. Also in Dworkin, *Sovereign Virtue*, 2000, chapter 2.

Joseph Carens, 'Rights and Duties in an Egalitarian Society', *Political Theory* 14 (1), 1986, pp.31-49.

Bernard Williams, 'The Idea of Equality', in Bernard Williams, *Problems of the Self*.

Will Kymlicka, *Contemporary Political Philosophy*, chapter 3.

Stuart White, *Equality*, chapter 4.

Past Essay Questions:

'Any compelling conception of egalitarianism must take account of both fairness and respect.' Discuss. [2024]

'Egalitarians should care more about the relationships within which goods are distributed than about the distribution themselves.' Discuss. [2023]

Does Rawls's theory of justice adequately realise the value of equality? [2022]

If egalitarians ought to be concerned with valuable social relationships, should they be committed to distributing them equally? [2021]

Should egalitarians pay more attention to individuals' suffering and disadvantage that are the effects of bad luck, or to suffering and disadvantage that are the effects of power? [2020]

Actual Notes

Basic Concepts in Equality

Key concepts of equality

- Sufficiency: a basic level of goods that everyone should have → Frankfurt argues that the basic concern we should have is not that everyone should have the same but that everyone should have enough
 - Eliminate global poverty
 - But sufficiency is compatible with vast inequalities
 - But sufficiency depends also on relative amounts → if we think in terms of Sen's capabilities approach (for instance the capability to participate in society), then this requires us to have not too little compared to others, otherwise we are priced out of the market → sufficiency is not orthogonal to the concept of equality
- Priority for the worst off → we are committed to improving the worst off, rather than just equality (which could entail bringing down the better off) → levelling down objection
 - However, the egalitarians could respond to the levelling down objection to argue that while it is undesirable to level down, this is because of some other overriding principle such as liberty and autonomy, rather than this intuition being indicative of the fact that equality is not valuable
 - Many cases of reducing equality would not constitute a levelling down situation
- Equality of opportunity: basis for a fair society which rewards effort and talent
 - Formal equality of opportunity is minimal → a person is not subject to legal blocks in competing for jobs and offices; stronger view is not discrimination
 - Robust policies of non-discrimination include socioeconomic inequalities
 - Rawls' fair equality of opportunities → 'equal life prospects for all sectors of society for those similarly endowed and motivated' → it therefore seeks to redress disadvantages due to factors such as unequal educational opportunities and unequal initial wealth endowments but allows for disadvantages due to unequal effort and talent
 - Fair equality of opportunity is compatible with a 'strong' meritocracy → but Rawls would argue that it must be moderated by the difference principle, plus there is not
 - Uncompromising equality of opportunity: should not suffer disadvantages in virtue of any unchosen factor → luck egalitarianism → option vs brute luck
 - Option luck is like gambling while brute luck is like a tsunami hitting you or your natural talents

- Problems with luck egalitarianism: reason to question whether luck egalitarianism captures fully what egalitarians ought in principle to be concerned about
 - Luck egalitarians call for compensation for those with handicaps and low earnings potential but they also seem to be extremely harsh in that people should simply suffer any disadvantages due to their choices → that the ambulance should ignore the drunk driver because it was out of option luck
- Equality of opportunity cannot by itself serve to justify our practices and institutions; a dictatorship can satisfy this principle just in case all individuals have an equal opportunity to be a dictator → the ideal of equality must itself attack to institutions and practices that are justified on independent grounds
 - Whether the prize structure of most current societies – the stakes attached to occupying different social positions – is justified is not something that can be answered by appeal to equality of opportunity
- Relational equality: equality is fundamentally relational in character → it is about the nature and quality of social relations than about a just distribution of goods
 - Relational equality is enjoyed when social relations are free of unaccountable power, stigma and grovelling
 - Anderson argues that relational egalitarianism fully captures the ideal of equality that progressive social movements have fought throughout history, that by contrast, 'luck egalitarianism' captures nothing of intrinsic concern
- Measuring inequality
 - Income: some people possess no income but consume but income tells us something about purchasing power
 - Wealth: wealth is far more unequally distributed than income → affects the opportunities and choice sets available to others
 - Also affects relational inequalities → capital wealth > income wealth
 - Scope of equality: what is the community of persons to which demand for equality applies? → global context vs nation state → human rights have a global scope → do the claims of justice extend globally i.e. further than the human rights minimum
 - Rawls would argue that egalitarian justice applies only between those who share participation in a shared scheme of economic cooperation; those who are mutually bound by shared laws
 - Equality between generations → discount future generations? Climate change?

Objections to inequality

- Efficiency: utilitarian argument that given the declining marginal utility of income, then ceteris paribus, a utilitarian advocates for greater equality of income

- Utilitarians assume identical preferences across people → some economists deny that we can make such interpersonal welfare comparisons
- Okun argues that if incomes and wealth are progressively taxed, then talented elites will change their behaviours in ways that can reduce economic output
- But high inequality can dampen output → case by case basis
- Social stability: trivial
- Well-being: how to measure and compare well-being
 - Sen makes the example of how in a deprived environment, individuals adapt their preferences such that they need less to be satisfied vs a New Yorker → the problem is that these preferences adaptations are not consistent with autonomy
 - Rawls argues that we should measure inequality in all purpose goods that citizens need to function such as freedoms, opportunities, powers, self respect etc; Sen argues for capabilities
- Unfairness in the causes of inequality (beyond social welfare)
 - Historical injustice: reparations for past systemic disadvantages → they did not choose to be born black etc → slavery, colonialism and extractive institutions
 - Group based inequalities, unequal opportunities and relational equality: causes of these inequalities are objectionable → access to quasi-public goods → differentials can be explained due to systemic racism etc
 - Gender: even though women have achieved higher educational attainment → they still are at an economic disadvantage compared to men
 - Market imperfections and unequal bargaining power: monopolies that exploit workers even if there are unions
- Unfairness in consequences of inequality
 - Unequal opportunity for political influence
 - Non-inclusive growth and failure of reciprocity: reciprocity features in discussions about cash benefits, and whether there should be an obligation to look or prepare for employment
 - The demand for reciprocity in this sense seems reasonable only if it understood as an obligation to do one's but as part of a generally fair scheme of economic cooperation
 - Where the wider economy lacks fairness in its structures of opportunity and reward, the demand for work as reciprocity requires unfairly disadvantaged workers to work even though other, more advantaged citizens have not made good on their obligations to ensure fair opportunities and rewards → symmetric failure of reciprocity

- Reciprocity can fail as a function of exploitation → due to capitalism (Marxian criticism)

Objections to egalitarianism

- Liberty objection: Nozick's coercion argument → does not invalidate all trade offs but establishes the trade off between liberty and equality
 - But this only makes sense if we think of negative liberty → positive or republican liberty in the Rousseauian sense → the relationships between men and men matter for liberty → which means that relational equality is necessary for liberty
- Claims of meritocracy: Mankiw argues that promoting equality is wrong when it conflicts with the principle that people should be compensated in terms of what they deserve
 - Hayek: desert here cannot mean moral desert because markets are not morally responsive to moral desert → they reward the efficient racist and punish the altruistic bumbler who is poor at planning → productive contribution is what desert is
 - Imperfect markets may neutralise desert → monopolists do not deserve their disproportionate share of rewards → productive contribution is difficult to untangle from the productive contributions of others with whom she is cooperating
- Politics of envy: a concern for equality is reflective of a politics of envy → more virtuous if they focused on getting on with the life open to them
 - Rests on a very narrow, inadequate characterisation of what motivates egalitarianism → poor and rich rests on political creations through the laws and policies of states
 - Desire for justice can have a more positive impetus → life affirming spirit

Overview of Egalitarian Theories

Egalitarian theories need to answer two questions: (i) on what basis is inequality acceptable or justified and (ii) over what space should we concern ourselves with equality (equality of resources, opportunities or welfare etc).

Luck Egalitarianism

- Motivated from the basic premise of equality of opportunity: we want to distribute to people based on their choices and not based on factors arbitrary from a moral point of view
- In effect the goal of an egalitarian theory is to be 'ambition-sensitive' while being 'endowment-insensitive' → we say endowment here in a loose sense because it can include accidents or fortunes that happen well into adult hood

- Luck egalitarianism thinks that there are two forms of luck: brute luck that is exogenous to your choices or option luck which arise from your choices i.e. taking on a gamble
 - Arneson, “the concern of distributive justice is to compensate individuals for misfortune...Distributive justice stipulates that the luck should transfer some or all of their gains due to luck to the lucky ’
 - The goal of the luck egalitarian is therefore to compensate individuals for their brute luck which is a natural contingency
 - Luck egalitarian aspires for an equality of condition → what renders someone to be equal in condition to another is what differentiates different luck egalitarians
- Because of this distinction, all luck egalitarian theories share the same socioeconomic core – a capitalist welfare state
 - For the outcomes that individuals are responsible for, egalitarians prescribe individualism and allow capitalism and voluntary transactions to determine the distribution
 - For the outcomes that are determined by luck or fortune, equality of fortune prescribes that all good fortune be equally shared and that all risks be pooled
- The basic structure of Luck Egalitarian without specifying the space: achieving equality of condition through equality of fortune
 - Luck egalitarians want to pool together all risk and share all good fortune i.e. unchosen endowments – luck egalitarians view the welfare state as a giant insurance company that insures its citizens against all forms of bad brute luck
 - Taxes for redistributive purposes are the moral equivalent of insurance premiums against bad luck → welfare payments compensate people against losses traceable to bad brute luck
 - Dworkin’s insurance analogy: Justice demands that the state compensate each individual for whatever brute risks they would have insured themselves against, on the assumption that they all were equally likely to suffer from the same risks (i.e. the veil of ignorance). The state steps in to provide social insurance when private insurance for a risk is not available to all on equal and affordable terms. When such private insurance is available, brute luck is automatically converted into option luck and thus hold that there is no demand of justice for society to bail them out → the upshot of this is that people pay for their preference or aversion against certain natural disadvantages
 - Will not achieve pure equality of condition but is a second-best theory
 - Most egalitarians recoil from this thought and thus mandate insurance on paternalistic grounds (thus making taxes compulsory for everyone)

Space of Egalitarianism

The key question here is what aspects of a person's condition should count in a fundamental way for egalitarians, and not merely as cause of or evidence or proxy for what they regard as fundamental

Welfare Egalitarianism

- Welfare egalitarianism is motivated by the following three reasons
 - What people care about is simply welfare: everything, including resources, are merely instrumental to achieving welfare. We should only concern ourselves with what people care about
 - If social and natural contingencies are arbitrary from a moral point of view, then it is inconsistent to not apply the same principle to our tastes and preferences (in lieu of the problem of expensive tastes)
 - We are not wholly responsible for cultivating expensive tastes and neither are we responsible for the fact that they are expensive
 - If we do not consider welfare, then we cannot accommodate the intuition that people with handicaps are entitled to more resources than others because being handicapped is analytically equivalent to having preferences that are involuntarily expensive to satisfy. If we must accept the liberal requirement of being neutral between competing conceptions of the good, then we cannot discriminate between involuntarily expensive tastes for mobility on the part of the handicapped and involuntarily expensive tastes for rare champagne on the part of gourmets
- What this means is that welfare egalitarianism thinks that equality of condition predisposes individuals to be equally situated to achieve the same quantity of welfare
 - Arneson's equality of opportunity for welfare: everyone should face a range of choices such that the sum of expected utilities for each equally accessible life history is equal to the sum of utilities that any other person faces in their possible life histories

Objections to Welfare Egalitarianism

- Most of the problems of welfare egalitarianism stem from preferences being fundamentally subjective and psychological in nature → the outsized role that welfare egalitarian gives variations in psychological dispositions across people in determining distribution seems intuitively concerning and disturbing
- Problem of expensive tastes: Basically, some people have much more expensive tastes than others and thus requires that society provide more resources to them for 'equal opportunity for welfare' → this seems deeply unfair especially when we consider that some preferences are things like champagne or jewellery

- Roemer argues that “Society should not compensate people for their choice of [a more altruistic, self sacrificing] path because it owes people no compensation on account of their moral views”
- Rawls: “As moral persons citizens have some part in forming and cultivating their final ends and preferences. It is not by itself an objection to the use of primary goods that it does not accommodate those with expensive tastes. One must argue in addition that it is unreasonable, if not unjust, to hold such persons responsible for their preferences and to require them to make out as best they can. But to argue this seems to presuppose that citizens’ preferences are beyond their control as propensities or cravings which simply happen. Citizens seem to be regarded as passive carriers of desires. The use of primary goods...relies on a capacity to assume responsibility for our ends.”
- Anderson argues that resource egalitarians would say that justice demands that the claims people are entitled to make on others should be sensitive not only to the benefits expected on the part of the claimants but to the burdens these claims place on others, measured by the opportunity costs of the resources devoted to meeting them which are the function of the preferences of others for the same resource
 - So, for egalitarian purposes, the value of a resource is not by how much welfare the owner can get from it, but by the price it would fetch in a perfectly competitive market if everyone could bid for it having the same wealth
- Problem of offensive tastes: Some people take pleasure in lessening the liberty of others and these pleasures should not be counted at all in the calculus
 - We want something like the equality of inoffensive welfare
- Adaptive preferences: Sen and Nussbaum point out how people in deprived conditions tend to adjust their expectations and desires towards their prevailing condition and so may face the same level of welfare vs someone in Manhattan in New York City → but clearly, one is worse off than the other
- Sovereignty of the objective over the subjective: Scanlon (1975) gives an example of someone who prefers to have resources to build a temple rather than to provide for his own health and physical well-being. If he would experience greater subjective welfare under the former scenario, is that the ideal outcome? Or should we take an objective view, specify welfare in terms of the most objectively urgent needs, and guarantee that those are met? Suppose a person will have a below average level of subjective welfare if they have their basic necessities but not the temple, and a very high level of subjective welfare if they have the temple but not the basic necessities. What would welfare egalitarianism have us do? This is a dispute over whether any objective welfare standards are sovereign over individual preferences.

- Lumping expensive tastes together: The welfare egalitarian seems to lump the expensive taste of the disabled with the expensive taste of the gourmet but this seems highly problematic

Dworkin's Resource Egalitarianism

Dworkin's project

- The Auction
 - The goal of egalitarianism for Dworkin is to create an 'envy free' distribution of resources → the test an egalitarian must meet to establish equality of condition is an 'envy test' → that no one prefers someone else's bundle of goods to their own
 - So, Dworkin sets up a hypothetical auction place where everyone has the same wealth and their bid for their most preferred bundle of goods subject to the preferences of others
 - The envy test cannot be passed by a mere division of resources → needs to be traced by subjective preferences of everyone
 - No one will envy another's bundle because by hypothesis, he would have been able to purchase that bundle
- The Insurance Scheme
 - Motivated by the problem of expensive tastes → we need to consider when a deficit in internal assets is so bad so as to require compensation since we do not want someone with having a trivial dissatisfaction, such as bad hair, to be entitled to compensation
 - Rely on subjective tastes: those who should be compensated for defects in internal assets are those who have purchased insurance against their having the defect if they were behind a veil of ignorance and did not know whether they would have that defect

Justification for Resources

- Rejects welfare because it is vulnerable to the problem of expensive tastes
 - "The various pieces of good or bad luck would be shared with others, because distribution would be based, not on any auction..., in which luck plays this whole, but on a strategy of evening out differences in whatever concept of welfare had been chosen"
 - Equality of resources offers no similar reason for correcting for the contingencies that determine how expensive or frustrating someone's preferences turn out to be
- Under equality of welfare, people are meant to decide what sorts of lives they want independently of information relevant to determining how much their choices will reduce or enhance the ability of others to have what they want

- Under equality of resources, people decide what sorts of lives to pursue against a background of information about the actual costs their choices impose on other people and hence the total stock of resources that may be fairly be used by them → through market prices → elements of luck in the auction (how abundant x resource is) is the information acquired by individuals and used during decision making
- We are not allowed to use the contingent facts of raw material and the distribution of tastes as grounds to contest a distribution as unequal
 - They are merely background facts that determine what equality of resources is
- According to Kymlica, the envy test expresses the liberal egalitarian view in its most defensible form because it achieves the three main aims of Rawls' theory: (i) respecting the moral equality of persons, (ii) mitigating the arbitrariness of natural and social contingencies, and (iii) accepting responsibility for our choices
 - Such a distributive scheme would be just and allow some inequality, but there is no inequality in respect and concern, since each of them is able to lead the life they choose, and each has an equal ability to bid for that bundle of social goods that best serves their beliefs about what gives value to life

Resources and Natural Disability

- While we should not compensate for expensive tastes, we should compensate for natural contingency due to brute luck such as disability
 - Convert all brute luck into option luck → that is a gamble that is chosen by people based on their personalities and dispositions
 - Extra money cannot compensate natural disability → for example, someone who is mentally less abled will never be sufficiently compensated through money
- Dworkin's insurance scheme is a 'second-best' approach because full equality of circumstances is impossible
 - Behind the veil of ignorance with equal wealth, people choose based on the dispositions whether to insure against different disadvantages they may suffer naturally
 - It is not that the insurance scheme achieves actual equality of circumstances but it is the best we can do to live out our convictions of justice
- Becomes a scheme of redistributive taxation where the welfare payouts are essentially insurance payouts and the taxation on others is essentially insurance premiums
- Possible Objection: Arbitrary distinction between accidents touching preferences and natural disabilities

- Link back to resources: Someone who is born with a serious handicap faces his life with what we concede to be fewer resources, just on that account, than others do, justifying compensation
- The reason why there is less equality of resources when someone has a popular taste is because it makes goods more expensive for them → the auction brings to bear information about the resources that actually exist and the competing preferences actually in play and thus the auction is the only true measure of whether any particular person commands equal resources

Institutional Arrangements and Equality of Resources

- Equality of resources are disturbed by voluntary transactions → people may envy another's goods at any one time so we must apply the envy test diachronically → it cannot be that we redistribute resources every year because of some new envy that emerges
 - The institutional arrangement for labour and wages passes the envy test so long as people do not envy another's bundle over time
- Equality of resources and laissez-faire institutional principles are incompatible
 - Equality of resources is not merely starting-gate → but it is devoted to whole lives → resources available to him at any moment must be a function of resources available or consumed by him at others, so that the explanation of why someone has less money now may be that he has consumed expensive leisure earlier
 - But what about unequal resources as a result of voluntary choices? → implicit assumption that the distribution of resources are due to his own choices
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Objection to Dworkin

- Roemer's paper on 'Equality of Resources implies equality of welfare'
 - Intuitively, things become envy free only when I do not prefer others' bundle of good to mine → notice the use of 'prefer' → consider a bundle of good x → for me to decide how much to bid for it, I consider its welfare i.e. how much it matters to me or how much happiness it brings me
 - For resources to be envy-free means that it must ensure that it would allow each person to be able to achieve the same level of welfare i.e. it collapses into equal opportunity for welfare

Cohen's 'Equal Access to Advantage' Egalitarianism

- Cohen thinks that an objection towards welfare egalitarianism does not immediately resource egalitarianism because of the opportunity for welfare principle

- But does the opportunity for welfare principle still not fall prey to the problem of expensive tastes? I do not see how opportunity for welfare is substantially different from welfare in this sense because in order to give the gourmet an equal opportunity for welfare as the thrifty, I probably need to give the gourmet 10 times as much money
- For Cohen, equality of opportunity for welfare is not as good as the reading that egalitarianism is to 'eliminate involuntary disadvantage'
 - The principle responds to inequalities in opportunities for welfare but advantage is broader than welfare
 - Anything which enhances my welfare is pro tanto to my advantage, but the converse is not true
- Cohen think that equality of resources is subject to objections which are just as strong as those which defeat equality of welfare (and opportunity of welfare)
- Cohen's objection: Consider an unfortunate person whose legs are paralysed and need an expensive wheelchair. Our egalitarian intuitions suggest that he should be given one.
 - Against welfare: But our egalitarian intuitions do not do this with reference to people's utility functions, otherwise we need to differentiate between the varying welfare effects that disability has to different people → we compensate for the disability as such and not just for its disutility effects
 - Using welfare poses an explanatory failure on the currency of egalitarian justice
 - Against opportunity for welfare: Tiny Tim is blessed with his fortunate disposition with abundant opportunity for happiness and is also actually happy; egalitarians would not on that account strike him off the list of free wheelchair effects
 - Against resources: Consider that there is something wrong with his arms as well and can move them especially well but it is extremely painful to do so → it is not difficult but costly to do so. There is expensive medicine that can suppress the pain. Egalitarians would supply that man with medicine even if it costs what a wheelchair does but providing the medicine cannot be represented as compensating for a resource incapacity since moving his arms is, in a relevant sense, better than most people
 - Cohen agrees that it is his lack of the capacity to avoid pain which is the egalitarian ground for compensating the person
 - But Compensating for a lack of capacity which needs to be described in that way for the ground of compensation to be revealed cannot be represented as compensating for incapacity when that is opposed to compensating for welfare opportunity deficiency
 - There is an irreducible welfare aspect that cannot be accounted by resource egalitarians

- Cohen's point is that both opportunity for welfare and resources are too narrow of spaces to sufficiently encapsulate the egalitarian ethos
- Cohen's notion of equality of access to advantage: no systematic answer but welfare and resource deficiencies are distinct types of disadvantage and that each of them covers pretty distinct subtypes such as poverty and physical weakness
- Contrast with Dworkin's: (i) Dworkin calls for compensation for resource deficiencies only and not also for pain and other illfare considered as such. There is no place in Dworkin's theory for comparisons of welfare levels of different people nor for catering to people whose pains do not diminish their capacity while Cohen's cut awards redress for both resource and welfare disadvantages; (ii) Dworkin does not put the absence of responsibility in the foreground as a necessary condition of just compensation – Cohen accuses Dworkin of obscuring the differences between advantages and resources because advantages consists of all involuntary ills that can occur
- For Dworkin, it is not choice but preference which excuses an otherwise unjustly unequal distribution
 - Compensation for power deficiencies but not for expensive tastes
- Cohen rejects this and argues that we should compensate for disadvantage beyond a person's control as such and that we should not draw a line between unfortunate resource endowment and unfortunate utility function
 - But he also maintains that a person with wantonly expensive tastes has no claim on us but neither does a person whose powers are feeble because he recklessly failed to develop them
 - There is no moral difference from an egalitarian point of view between a person who irresponsibly acquires (or blamelessly chooses to develop) an expensive taste and a person who irresponsibly loses (or blamelessly chooses to consume) a valuable resource
 - But how do you determine this?
 - Distinguishes among expensive tastes according to whether their bearer can reasonably be held responsible for them
- Difficult case for the opportunity for welfare egalitarian: cheap expensive tastes
 - Consider Jude who has cheap expensive tastes – cheap in the sense that they require less resources than everyone but expensive in the sense that Jude could achieve the same level of welfare with less resources had he not cultivated such tastes
 - A believer in Dworkin's style equality of resources would ignore Jude's tastes and their history and finds no reason to give him income less than anyone else
 - A believer in equality of opportunity for welfare has to keep Jude poor since he did not have to become a bullfight lover

- Cohen believes he should still receive the funds to go to Spain but he should also accept some deductions because of his fortunate ability to get welfare out of resources
- Dworkin's test for involuntary tastes: 'wishes he did not have them'
 - Dworkin's considers them handicaps because they are part of one's environment rather than being inalienable aspects of his person → form no part of one's ambition
 - Cohen's four replies
 - Some people are too unreflective to form second order preference-repudiating preferences to actually satisfy Dworkin's test
 - Not all tastes which hamper the individual's life and therefore raise a case for compensation qualify as obsessions or subjectively repudiable tastes
 - Incoherent: Dworkin's music lover prefers not to have his unfortunate preference and yet by hypothesis prefers in having it → likely cannot help having it
 - Suppose there was no such warning, that our unfortunate contracted his expensive taste innocently and that now we offer him an inexpensive un-repugnant therapy that would school him out of it
 - If he agrees to free therapy then the ideal of equality says he should get it regardless of whether he regrets it or is relieved
 - This suggests that the identification and dis-identification matter for egalitarian justice only if and insofar as they indicate presence and absence of choice
- Dworkin comes close to the basic choice/luck distinction but does not get fully there because luck (or chance) appears in his text as only one element in a set of unjust distributors, others being differences in initial advantages and in inherent capacity
- Cohen argues that we must eschew Dworkin's preferences/resources distinction in favour of a wider access-oriented egalitarianism
 - We can agree with him that 'it is perhaps the final evil of a genuinely unequal distribution of resources that some people have reason for regret just in the fact that they have been cheated of the chances others have had to make something valuable of their lives' But equalising those chances requires discriminating attention to what is and what is not chosen and not to what belongs to a preference as opposed to endowment
 - Kymlicka on how Dworkin corrects deficiencies in Rawls' theory: "it is unjust if people are disadvantaged by inequality of their circumstances, but it is equally unjust for me to demand that someone else pay for the cost of my choices"
 - Centrality of choice

- Does the centrality of choice force us to confront the difficulty of free will → subordinate political philosophy to metaphysical questions
- Scanlon rejects the sovereignty of subjective preferences and argues for considerations over objective welfare → Cohen's advantages is congruent with Scanlon's point
 - Temple example vs health
- Cohen's egalitarianism necessitates two stages: (i) any deficit in welfare is treated as a possible case for compensation; (ii) whether it actually constitutes such a case is decided by facts about choice
- Scanlon's possible objections
 - Certain welfare deficits which reflect the subject's adherence to a religion raise no prima facie case for compensation because "it might destroy the point of religious burdens to have them compensated by social compensation...the idea that these burdens are grounds for such compensation (as a form of bad luck) is incompatible with regarding them as matters of belief and conviction which one values and adheres to because one thinks them right"
 - Cohen's reply: revise to "compensate for disadvantages which are not traceable to the subject's choice and which the subject would choose not to suffer them" → addition of a counterfactual clause
 - The disadvantage is to be redressed is either exploitation of bad luck → burden of religious guilt vs that they are not advantageously disposed to meet the religious burdens → different burdens
 - Circumstances are not bad luck when they are so intrinsically connected with their bearer that their bearer would choose to suffer from them
 - Scanlon rejects that it is possible for preferences to be our own volition – he rejects specifically the thesis that preferences may not be immediately subject to the will but there may be scope for volition in "the malleability of preference over time" i.e. preferences are manufactured by the person who has them – Scanlon: "if this were the whole basis for the voluntariness objection one would expect that, at least in principle, the actual genesis of a person's preference would be relevant to the strength of their claim to be satisfied. The very same intense interest might have arisen out of a conscious decision to "take up" a certain activity, or it might have grown almost unnoticed as a result of a series of chance encounters. Which of these is the case does not, however, seem to matter for the purposes of determining the strength of the person's claim on others for aid in the satisfaction of this interest"

- Cohen rejects this suggestion that “the actual genesis of a person’s preference” is irrelevant to the strength of his claim to have them satisfied
- Scanlon suggests that something more appealing underwrites our reference to voluntariness – it is the very “fact that an interest, given its content, could have arisen” → voluntariness is not essential but what matters is merely the fact that it is possible in some close world
 - Basically, Justice should not cater to idiosyncrasy
- Cohen thinks it is not appealing that just because an interest could or could not have arisen implies that it is not of urgent attention to justice
- Connection with capabilities
 - Thinks that Sen’s use of capability is ambiguous
 - I think that Cohen’s view of advantages remains weaker than Sen’s view of capabilities
 - For Cohen, I suspect that what Cohen means by advantages are related to local endowments that are belonging to a person while Sen would include the socioeconomic or political structure of society in the notion of capabilities
 - This has relevant policy differences: For Cohen, the only way to plausibly compensate someone is by the transfer of some divisible goods while Sen would advocate (just like Anderson) the establishment of access ramps in public spaces

Anderson’s Relational Egalitarianism

Anderson’s objection to luck egalitarianism is two-fold. First, she denies that the central value of egalitarianism is equality of fortune or condition. Instead, she considers respect for all as the central ethos of egalitarianism. Second, she denies that the fundamental consideration of egalitarians are welfare or resources but rather the social and institutional arrangements required to ensure that people stand in equal relation to one another – this will be achieved through having sufficient capabilities.

In a way, Anderson’s Relational Egalitarianism criticises luck egalitarianism for fetishising of what should not matter to us, or should not matter very much. A better approach is to look at distributive justice issues by asking what social and distributive arrangements are needed to establish and sustain a society of free, equal people, a society in which individuals all relate as equals. Therefore, Anderson’s argument can be interpreted as advocating for a sufficientarian approach to egalitarianism.

Respect as the central value of equality

- Anderson distinguishes between the negative and positive goals of egalitarianism
 - Negative: Egalitarians seek to abolish oppression – that is, forms of social relationships by which some people dominate, exploit, marginalise, demean, and inflict violence upon others
 - Positive: Egalitarians seek a social order in which persons stand in relations of equality. They seek to live together in a democratic community [of equals], as opposed to a hierarchical one
 - To stand as an equal before others in discussion means that one is entitled to participate, that others recognise an obligation to listen respectfully and respond to one's arguments, that no one need bow and scrape before others or represent themselves as inferior to others as a condition of having their claim heard
 - Any consideration of resources or distribution of goods is instrumental to the achievement of relational equality
- Argument from sociopolitical reality: Luck egalitarianism is divorced from sociopolitical reality, where the agendas of actual egalitarian political movements – such as gay and lesbian people seeking the freedom to appear in public as who they are without shame – are much broader than the mere 'distribution of divisible, privately appropriated goods, such as income or resources, or privately enjoyed goods, such as welfare'
 - Actual egalitarian political movements are about advocating for an egalitarian ethos of solidarity and respect for every individuals → about inclusion and minimising exclusion
- Argument from function of the state: Luck egalitarianism engenders an inappropriate expansion of what is deemed to be the legitimate business of the state. Suppose we distinguish roughly between misfortune that is imposed on people by social action and social arrangements and misfortune that just falls on people without being imposed by anyone. The distinction draws a line between inequality due to society and inequality due to nature.
 - "The proper negative aim of egalitarian justice is not to eliminate the impact of brute luck from human affairs, but to end oppression, which by definition is socially imposed"
- Anderson's conception of equality → desiderata for egalitarian principles of justice
 - First, such principles must identify certain goods to which all citizens must have effective access over the course of their whole lives → some goods are more important than others no matter the space of equality we consider
 - To lose access to such goods are unacceptable
 - Second, egalitarians should be able to justify such guarantees of lifetime accessibility without resorting to paternalism
 - Third, egalitarian principles should offer remedies that match the type of injustice being corrected

- Private satisfaction cannot make up for public oppression
- Finally, such principles should be possible objects of collective willing
 - Social contract theory → fundamental obligation of citizens is to secure the social conditions for everyone's freedom
 - Unlike the libertarian, the egalitarian thinks that the social condition for everyone's freedom is to stand in relation of equality with others
 - Freedom and equality are not contradictory especially when we conceive of equality as relational: equals are not subject to arbitrary violence or physical coercion nor are they marginalised

Why Luck Egalitarians exhibit an ethos of disrespect

- What Luck Egalitarian theories are – Anderson calls them 'starting gate theories'
 - Just about giving everyone a fair start to life and punishing any imprudent choice made after
- Anderson claims that this punishment of the imprudent 'appears to give us some of the worst aspects of capitalism and socialism' and is not congruent with the image of egalitarianism as 'reflect[ing] a generous, humane, cosmopolitan vision of a society that recognises individuals as equals in all their diversity. It should promote institutional arrangements that enable the diversity of people's talents, aspirations, roles and cultures to benefit everyone and to be recognised as mutually beneficial'
- Problem 1 from the evils of capitalism: Offers a very inadequate safety net for victims of bad option luck
 - As long as people enjoy fair shares at the start of life, it does not much concern itself with the suffering and subjection generated by people's voluntary agreements in free markets
 - The fact that these evils are the product of voluntary choices hardly justifies them: free choice within a set of options does not justify the set of options itself
 - Luck egalitarianism focuses too much on the injustices of nature than the institutional arrangements that generate people's opportunities over time
 - Geographical Discrimination: Some people choose to stay near the San Andreas fault line → should he not be helped if an earthquake occurred at his home? Should Americans all crowd in Utah
 - Occupational Discrimination: The luck egalitarian would hold that disability resulting from being conscripted into the army should be compensated, but disabilities from patriotic volunteers should not
 - Nothing to stop people from being bankrupt due to bad option luck from being exploited i.e. working in a sweatshop
- Problem 2 from the evils of capitalism: Using private (dis)satisfaction to justify public oppression

- Cohen argues that ‘if Tiny Tim would still be happy without his wheelchair and sullen Scrooge would be consoled by having the money it costs, then Tim should have to give up his wheelchair to Scrooge’
- These theories in relying on subjective evaluations and in aggregating over different dimensions of well-being, allow for private satisfactions to count as making up for publicly imposed disadvantages → oppression should not persist even if someone is satisfied under oppression
- This reveals the problem in Dworkin’s insurance system in the sense that such an insurance system dependent on individual’s subjective tastes and preferences do not generate obligations for society
 - What one is obligated to do for others is not determined either by one’s own or even by the beneficiaries’ tastes → such taste relativity licenses discrimination against citizens with rare disabilities and against risk-loving citizens → for there is so little ex ante probability that they will get the disability that they choose not to insure against it
 - Analogy to law: the law is the paradigmatic case of societal obligation but all laws are independent of subjective tastes
 - Moreover, if everyone rationally purchased some insurance from themselves for plastic surgery to correct minor defects – this fact is hardly sufficient to generate an obligation for society to pay for it
- Luck egalitarianism overlooks that market choices and tastes offer no guidance to what citizens are obligated to provide to one another on a collective basis
 - Egalitarianism must apply principles of collective willing
 - Rousseauian concerns of private wills vs the general will
- Problem 3 from the evils of socialism: interferes with citizen’s privacy and liberty and passes intrusive judgements
 - To implement the principle of equality of fortune (that no one should suffer from underserved misfortune), the state must make judgements on what misfortunes or fortunes are deserved → whether the lung cancer is deserved by the smoker
 - Hayek argues that such central merit based systems of reward are problematic: in order to lay a claim to some important benefit, people are forced to obey other people’s judgements of what uses they should have made of their opportunities, rather than following their own judgement
 - Such a system requires the state to make grossly intrusive, moralising judgements of individual’s choices
- Problem 4: Assumes atomistic egoism and self-sufficiency as the norm for human beings and unfairly penalises those who enter relationships with others that might generate obligations to enter into dependent caretaking

- Some women, not because of a lack of talent, choose to develop and exercise talents that command little or no market wage such as taking care of children
- Luck Egalitarians would say that such financial dependence on another is by choice and thus there should be no remedying of an injustice if any → the claim is that if women do not want to be subject to poverty and vulnerability, they should not choose to have children
- Problem 5: Expresses pity and disparages the internally disadvantaged and raises private disdain to the status of officially recognised truth
 - Nagel: “When racial and sexual injustices have been reduced, we shall still be left with the great injustices of the smart and dumb”
 - Luck egalitarians view individuals who have less internal assets than others as ‘cursed’ and unfortunate because their reason to their action of compensating is precisely that, to compensate another for bad luck or misfortune → undermines the dignity of a self-respecting citizen who can only be insulted by these messages
 - The Luck Egalitarian passes judgement on the internal worth of individuals and elevates this to political truth by passing a stamp of recognition
 - The Luck Egalitarian is moved by pity, rather than compassion → pity is condescending as it is an expression from the fortunate to the less fortunate
 - Pity aims to equalise suffering, while Compassion aims to relieve suffering → pity therefore is manifested as a distributional doctrine while compassion is mainly sufficientarian → once suffering has been relieved, compassion generates no further obligation towards equality of condition

What Relational Egalitarianism Is (by contrast with equality of fortune)

- Democratic equality aims to abolish socially created oppressions while equality of fortune aims to correct what it takes to be injustices generated by the natural order
- Democratic equality is a relational theory of equality and views equality as a social relationship while equality of fortune is a distributive theory of equality: it conceives of equality as a pattern of distribution.
- Equality of opportunity sees people as equal insofar as they enjoy equal amounts of some distributable good while democratic equality regards two people as equal when each accepts the obligation to justify their actions by principles acceptable to other other, and in which they take mutual consultation, reciprocation and recognition for granted
 - Certain patterns in the distribution of goods may be instrumental to securing such relationships but relational egalitarians are fundamentally concerned with the relationships within which goods are distributed and not only with the distribution of the goods themselves

- Democratic equality is sensitive to the need to integrate the demands of equal recognition with those of equal distribution: goods must be distributed according to principles and processes that express respect for all
 - Echo of sufficientarianism

Why Relational Egalitarianism exhibits an ethos of equal respect for all

- Determining the space: Anderson begins from the starting point of what freedom consists of via Sen's Capabilities Approach
 - A robust understanding of freedom opens the way to understand what it means to secure the social conditions for everyone's freedom
 - Anderson's theory begins from freedom to achieve equality
- Capabilities = access to sets of functionings that one can achieve, given the personal, material and social resources available to her
- What sorts of capabilities are we obligated to equalise: egalitarians aim for citizens to achieve functionings that enable them to be equal citizens while also functionings to remove oppression and domination
 - Advocates for equality across a wide range of capabilities but not comprehensive
 - Focus on capabilities that allow for functioning as an equal citizen:
 - functionings as an equal political agent such as voting, political speech but also functioning as an equal participant in civil society
 - Able to participate in various activities of civil society more broadly including participation in the economy
 - Implies effective access to basic conditions of human agency (ability to deliberate about means and ends, the psychological conditions of autonomy) and biological existence
 - How do we compensate those who are mentally retarded?
- Sufficientarian tenor: Democratic equality guarantees not effective access to equal levels of functioning, but effective access to levels of functioning sufficient to stand as an equal in society
 - Sometimes, requires equality → such as voting
 - But for stuff like income → not necessary
- The capability approach informs us that equality is not merely the distribution of divisible goods, but requires considerations of social relations and norms and the structure of opportunities, public goods and public spaces
 - It does not think that to make a naturally disabled individual to stand as equal to others requires giving them money → rather, it involves ensuring that there are accessible ramps for wheelchair bound in public spaces or access to adequate nutrition
- Principles of production and distribution: Anderson still needs to develop a theory of distribution → who should get what

- For those capable of working and with access to jobs, the actual achievement of these functionings is, in the normal case, conditional on participating in the productive system → but then does this not create a lack of safety net and still makes intrusive judgements on whether a person is actually putting in effort → perhaps the way around this is that there is a minimal reasonable level of output that tracks effort → difference between imprudence vs lazy
- We do not owe people the real freedom to be beach bums
- Theory of distribution: workers are to regard the economy as a system of cooperative, joint production
 - People regard every product of the economy as jointly produced by everyone working together
 - To credit specific individuals for some slice of production is to arbitrarily cut through an interconnected web of complex production → each worker's input depends on an array of preconditions
 - The principles that govern the division of labour and the assignment of particular benefits to the performance of roles in the division of labour must be acceptable to everyone in this sense → interpersonal principle of justification: any consideration offered as a reason for a policy must serve to justify the policy when uttered by anyone to anyone else who participates in the economy as a worker or a consumer
- System of cooperation provides a safety net through which even the imprudent can never fall through
 - No role in the productive system shall be assigned such inadequate benefits that given the risks a person could be deprived of the social conditions of their freedoms
- Income policy: begins from the place that they appreciate the role which low income workers fill rather than thinking whether low income workers are there by choice
 - They free up spaces for high income workers to use their talents to increase production
 - Corporate executives may not cut so many deals if they had to answer their own telephone calls → calls for a mode of distribution where everyone benefits from the diversity of talents and roles in society and undermines the lopsided thought that workers at the top make a lopsided contribution to the so called social product
 - Motivates a conception of reciprocity that squeezes the gap between the highest and lowest paid workers
- This macrostructure of society that Anderson envisions is her way of arguing for a institutional and political arrangement whereby
 - It is not by merely appending a scheme of redistributive taxation to our current capitalist system

- Rawls' difference principle: democratic equality envisions a less demanding form of reciprocity → once all citizens enjoy a decent set of freedoms, sufficient for functioning as an equal in society, income inequalities beyond that point do not seem so troubling in themselves
 - Income inequality is only a concern insofar as they are converted into status inequality

Extending Anderson's Relational Egalitarianism

Crenshaw's Mapping the Margins: Intersectionality, Identity Politics and Violence Against Women of Colour

- Traditional liberal discourse seeks to transcend differences in identity such as race, gender etc → i.e. through redistribution
 - But the problem is not that it fails to transcend differences but that it conflates or ignores intragroup differences
 - For example, the fact that women of colour suffer from disadvantages more than white women → the way in which different identity categories interact with one another is a matter of consideration
 - Traditional liberal discourse treats identity categories of race and gender as mutually exclusive terrain
- Structural intersectionality: Battering of poor women in shelters
 - Women of colour are also burdened by poverty, child care responsibilities and the lack of job skills
 - Systems of race, gender and class domination converge as they do in experiences of battered women of colour
 - Immigrant women are vulnerable to spousal violence because they depend on their husbands for information regarding their legal status
- Requirement of *robust* respect: recognising the multiple dimensions of identity
 - Luck Egalitarians cannot offer a sufficient response to these issues on deep seated inequality because they subordinate respect to fairness and often operate in the space of resources or divisible private goods → ignores how important it is to transform the political climate and socio-legal structures that underpin society
 - We cannot ignore the gender based dimensions in racial politics and vice versa
 - Ignoring one dimension further creates domination of a group
 - Claims of cultural specificity sometimes serve as an attempt to justify misogyny (Shahrazad Ali's book on A Black Man's guide in understanding a Black Woman)
 - 2 Live Crew Case: had a cultural defence because it recognising merit in a form of music common to the Black Community, they ignored questions of the sexism within the tradition they defend

- The fact that playing the dozens is rooted in Black culture tradition or that themes represented by mythic folk heroes such as 'Stackolee' are African American does not settle the question of whether such practices oppress Black Women
- Essentiality of respect: divisible-goods based redistribution seeks to just neutralise all forms of differences between people without investigating how systemic the injustice is

Argument from the ideal of equality: The priority of respect over fairness

- Wolff: Reject the lexical priority of fairness i.e. that egalitarianism is constituted by a lexically prior notion of fairness
 - The lexical priority of fairness underwrites much of egalitarian thought
- Egalitarian Ethos: Tawney argues that the currency of egalitarian justice is not wealth but a certain conception of human flourishing
 - More to a society of equals than a just scheme of distribution of material goods
- What is the Egalitarian Ethos?
 - Predominant conception is of fairness – that all other egalitarian values are subordinate to fairness
 - Fairness is the demand that no one should be advantaged or disadvantaged by arbitrary factors
- Rejoinder to fairness: Respect as the Egalitarian Ethos → the eventual goal is an ideal of a society of free standing equals
 - There are certain behaviours and attitudes that underline respect or disrespect
 - Egalitarianism partially derives from the thought that others are generally equally as deserving of respect as I am
 - Connection with citizenship: failure of common courtesy, failures of trust and shameful revelation
- Highly conditional welfare benefits do not inspire respect
- Fairness and respect do come into conflict
 - Welfare claimants are treated with great rudeness and are routinely humiliated → but usually a failing of individuals
 - Lack of trust: we utilise highly rigorous and punitive control to make sure that people correctly report their situation → eliminate free riding
 - We send a message that anyone unemployed and makes a claim for benefit is prima facie an object of suspicion
 - Shameful revelation: there is a zeitgeist of shame in revealing that oneself is eligible for welfare payouts

- One must show that he or she fails to have the opportunities that others have → these are not usually objective deprivations i.e. formal or legal barriers but subjective ones i.e. to do with their talents
- It is demeaning to have to admit to oneself and then convince others that the reason I cannot secure a job is because of my own insufficiency
- This is better than Anderson's argument of condescension → under relational egalitarianism, we need not know the reason for one's lack of capabilities because it is outcome oriented

Objections towards Anderson's Relational Egalitarianism

- Anderson's criticism of Luck Egalitarianism is overly harsh
 - First, it remains commensurate for luck egalitarians to help those people with regards to humanitarian or life-threatening crises and still maintain that inequalities are permissible when it results from choice. A better example, they might say, is that of a rich gambler who gambles away almost all his money. Surely society would not be obligated to aid such imprudence as an imperative of justice.
 - Second, they could suggest that Anderson's interpretation of luck egalitarianism is too harsh: they are not going to send demeaning and insulting messages to accompany the benefits that the worse off receive. In fact, they could turn Anderson's construal on its head – they respect individuals precisely because they enable them to make autonomous choices, by giving them capabilities, resources etc to fulfil their rational plan of life
- Reply from Kantian premise of people as ends in themselves:
 - This is where, I suspect, Anderson could sharpen her criticism. The reason why the choice/luck permissibility of inequality is disrespectful is not just because of the signals it sends either the beneficiaries of justice or the people obligated to give back. Rather, it is disrespectful because it merely treats people as instruments, as mere "locations of ability".
 - This arises from how luck egalitarianism explains justice – the main goal of justice, it is said, is to adjust for "involuntary disadvantages". People then become mere collections of advantages and disadvantages. If you benefitted from 'brute luck' I, the egalitarian social planner, can take whatever I want from you to give to someone else simply because you have more advantages than someone else – to me, you are a collection of advantages. This contradicts the obvious Kantian contours that animate egalitarianism – for Williams highlights that the reason for equality is because humans have equal moral standing with each other. In trying to preserve autonomy, luck egalitarians unfortunately treat people as instruments rather than ends in

themselves. The choice/luck permissibility of inequality does not respect people for who they are.

- Concern: then Anderson's objection whittles down to an intensional criticism of luck egalitarianism → but equality of condition is an extensional theory about how goods should be distributed → it is hard to see how it has any intentional import about its views on the worth of persons
 - Regardless, is Anderson not doing so as well? By having to raise people up so they are able to participate in society?
- Fundamental ambiguity in what it means to stand 'in equal relation' with someone
 - Anderson does not really make it clear why just being able to participate in society is to stand 'in equal relation' to someone and why it does not just mean equality
 - It is possible that if I am not completely equal with you in powers and resources, that I am the object of further pity and condescension by others → if this is so, then it just collapses into equality of condition or circumstance at the very least
 - Possible Reply: The positive reason for why sufficientarianism is enough for someone to stand in 'equal relation' to someone is because Anderson takes the perspective of equal relation to mean being a fellow undominated democratic citizen who enjoys much of the same liberties and essential capacities that others face. So while one may not be able to enjoy the delights of caviar or fine wine, this does not render him dominated or marginalised. Anderson equates equal relation to the abolishment of clearly and structurally or culturally grounded hierarchies
- Ignores the question of desert
 - Anderson allows for some form of income inequality to exist but on what principle does she allow them to exist? She denies the notion of crediting individuals for a specific slice
 - Probably some utilitarian or motivational reason so that people would want to pursue high productivity jobs
- Invites personal irresponsibility
 - Reply: does not indemnify individuals against all losses due to their imprudent conduct → guarantees sufficient capabilities necessary to functioning as a free and equal citizen and avoiding oppression
 - Reply: a lot of the capabilities are prerequisites to exercising responsible agency such as knowledge of one's circumstances and ability to deliberate
- By guaranteeing specific capabilities, we violate the freedom of citizens and violates the requirement of liberal neutrality among competing conceptions of the good
 - Reply: confused between what people want and what other people are obligated to give them → obligations and circumstantial desires come apart in our duties

- The basic duty of citizens is not to make everyone happy but to secure the conditions of their freedom
 - Further reply: confused about the place of neutrality → it is to ensure that judging the claims of justice does not rest on sectarian notions of the good; Anderson's democratic equality does not claim authority in virtue of the actual set of capabilities it guarantees but in virtue of being a possible object of collective willing → the capabilities are in this sense neutral
- Tension in Anderson's view: On one hand, she victoriously declares "justice leaves no one behind"; that unlike luck egalitarianism, the impermissibility of inequality is *unconditional*. On the other, she conceives access to function in society as conditional on one's contributions to society. If you were a lazy beach bum, you would not be entitled to equal capacities to function in society. So, inequality seems permissible for people who do not contribute to society.
 - I think Anderson must lose the condition of people contributing to society → even if she only demands some sort of minimal contribution, there is still Wolff's issue of shameful revelation
 - But there is also a positive reason for why Anderson should lose this condition: if democratic equality strives to realise a compassionate vision for egalitarianism that treats people with respect, it has to presuppose a robust sense of citizenship that engenders trusts in each and every individual
 - It does not automatically treat an individual who is unemployed as an object of suspicion

The importance of recognition

- Two forms of inequality: (i) socioeconomic injustices that is rooted in the political-economic structure of society such as exploitation or economic marginalisation; (ii) cultural or symbolic that is rooted in social patterns of representation, interpretation and communication such as cultural domination, nonrecognition and disrespect
- The remedy for (i) is some sort of political/institutional adjustment – Fraser calls this 'redistribution' but I really disagree
- The remedy for (ii) is symbolic or cultural change
 - Involve upwardly revaluing disrespected identities and the cultural products of maligned groups or positively valorising cultural diversity
- Is there a relation between claims for recognition aimed at remedying cultural injustice and the claims for redistribution aimed at redressing economic injustices? Are there mutual interferences between the two claims?
 - Recognition often takes the form of calling attention to some specific group and affirming its value i.e. elevating group differentiation while redistribution claims to call for the abolishment of economic arrangements that underpin group specificity like gender division of labour

- Collectives are often bivalent and are differentiated as collectives in virtue of both political-economic structure and cultural-valuation structure of society
 - Gender and race are paradigmatic bivalent collectives → really? I would deny this
 - Gender → pink collar jobs or more effeminate jobs but also encompasses cultural elements as well
- Approaches that cut across both: ‘affirmation’ and ‘transformation’
 - Affirmative approaches are about correcting inequitable outcomes of social arrangements without disturbing the underlying framework that generates them
 - Mainstream multiculturalism: revaluing devalued group identities
 - Affirmative redistribution: public assistance programs that provide means-tested, ‘targeted’ aid to the unemployed and underemployed → do not abolish class differences but help support it and shape it
 - But this is self-contradictory because it generally presupposes a universalist conception of recognition i.e. that there is an equal moral worth of persons yet the practice of affirmative redistribution, as iterated over time, tends to set in motion a second-stigmatising-recognition dynamic which contradicts its official commitment to universalism
 - Transformative remedies aim at correcting outcomes precisely by restructuring the underlying generative framework
 - Typically combine universalist social-welfare programs, steeply progressive taxation, macroeconomic policies aimed at creating full employment, a large non-market public sector, significant public ownership etc
 - Ensure employment for all
 - Self-consistent → presupposes equal worth of all but its practice does not undermine this conception

Deepening the Capabilities Approach

Motivations for the capabilities approach

- Incommensurability of natural assets and income and embraces the plurality of ends
 - It is impossible to answer how much income is sufficient to compensate a handicapped individual
 - Makes more sense to treat each functioning on its own terms rather than trying to combine and make trade-offs between each functioning
 - Plurality of ends is not an embarrassment of the theory but appreciates the diversity of human ends → its incompleteness (incomparability of all individuals) reflects the complexity of humans
- Insufficiency of Primary Goods

- The motivation for primary goods such as income and basic liberties is that they are things any rational man would want and are thus 'general purpose means or resources useful for the pursuit of different ideas of the good that the individual may have'
 - Therefore, Rawls' primary goods index concentrates on providing a means to freedom → the ability to pursue their own conception of the good via general purpose goods
 - But we cannot concentrate merely on the means to freedom, but rather we must focus on the extent of freedom that a person actually has
- In the capability-based assessment of justice, individual claims are not to be assessed in terms of the resources of primary goods the persons respectively hold, but by the freedoms they actually enjoy to choose the lives that they have reason to value
 - This freedom is represented by the person's capability
- Connection between Freedom and Equality
 - Libertarians think it important that people should have liberty → but liberty is not bivalent (0 or 1) → we must immediately ask who, how much and how equal?
 - The issue of equality arises as a supplement to the assertion of the importance of liberty
- Denying welfarism
 - The main argument for welfarism is the argument of the final end: that the common ends of all people is to maximise personal welfare → egalitarians should care about what people want
 - Sen argues that welfare is but one of the ends that people pursue → other things include personal relationships that have intrinsic value beyond welfare as well as and crucially 'agency objectives' i.e. my role in the promotion of my life and objectives
- Freedom and Well-being come into conflict
 - The promotion of freedom is not necessarily advantageous → the advancement of agency freedom (the increase in one's ability to promote goals that one has reasons to promote) can lead to a reduction of well-being freedom (and correspondingly to a decline in achieved well-being)
 - For example: instead of being far away from a scene of a crime I would like to prevent, I happen to bang on the spot which increases my agency freedom but as a result my well-being may go down
 - Proves that well-being and freedom are not 1-1